

Multiple Choice (10 marks)

1. What is the purpose of sovereign immunity?
 - (a) The purpose of immunity is to protect foreign Heads of State from embarrassment
 - (b) Immunity protects a State from being invaded by another
 - (c) Immunity shields States from being sued in the courts of other States
 - (d) The purpose of immunity is to offer impunity in respect of all crimes
2. Which word best summarizes Weber's explanation of the development of formally rational law?
 - (a) Authority.
 - (b) Charisma.
 - (c) Co-operation.
 - (d) Capitalism.
3. Which of the following cases best illustrates the 'living instrument principle' used by the European Court of Human Rights?
 - (a) Golder v UK (1978)
 - (b) A v UK (2009)
 - (c) Goodwin v UK (2002)
 - (d) Osman v UK (1998)
4. Which of the following articles are not qualified rights?
 - (a) Article 3
 - (b) Article 8
 - (c) Article 9
 - (d) Article 11
5. Which one of the following statements is correct?
 - (a) The Council of Europe was established in 1950 and consists of 27 member states
 - (b) The Council of Europe was established in 1949 and consists of 47 member states
 - (c) The Council of Europe was established in 1959 and consists of 34 member states
 - (d) The Council of Europe was established in 1984 and consists of 19 member states

True / False (10 marks)

Answer True or False

6. True or False: An 'armed attack' allows for the justification of invading a state based solely on perceived threats or minor incidents.
7. True or False: Critical legal theorists argue that law is not determinate and instead reflects social and political struggles.
8. True or False: Normative legal theory solely focuses on the positivist view of law as articulated by HLA Hart.
9. True or False: Leopold Pospisil identifies hierarchy as one of the four elements manifested by law.
10. True or False: Natural law requires the application of reason as its only foundation for validity.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss Catharine MacKinnon's argument that the relationship between men and women is fundamentally about power. How does this perspective challenge the notion that political pressure alone can achieve women's equality?
12. Discuss the principle of sovereign equality among states under international law, analyzing its implications and the absence of hierarchy among sovereign states.

End of Paper